

500 years, remainder to the heirs male of the body of Thomas by his intended wife, "and if he died without issue male by his intended wife, and there should be one or more daughters which should be *unmarried or unprovided for at the time of his death*," then to raise portions for the daughter or daughters payable at eighteen or marriage with maintenance in the meantime. The wife died without issue male, but leaving a daughter who married, and she and her husband filed their bill to have the portions raised during the father's life. The Court refused the relief asked, on the ground that the portion was contingent on the daughter being unmarried and unprovided for at the father's death, a contingency which had not yet happened.

In *Butler v. Duncomb* (c), the marriage settlement limited the estate to George for life, remainder to Mary for life, remainder * to the first and other sons in tail [*416] male, remainder to trustees for 500 years upon trust, that the trustees should "from and after the *commencement of the term*" raise portions for the younger children payable at twenty-one or marriage; remainder to George in fee. George died, leaving a daughter the only issue, who married, and then she and her husband filed their bill to have the portion raised in the lifetime of the mother. But the Court declined to make any such order, as the trust was to raise the portion from and after the commencement of the term, which meant the commencement *in possession*, and that this implied a negative, viz. that it was not to be raised before.

In *Brome v. Berkley* (a) the marriage settlement was to George for life, remainder to the wife for life for her jointure, remainder to the first and other sons in tail, remainder to trustees and their heirs to raise portions for daughters, payable at twenty-one or marriage with *maintenance in the meantime*, "the first payment of the maintenance money to be made at such half-yearly feast as should next happen after the *estate limited to the trustees should take effect in possession*." The husband died leaving no issue but a daughter who attained twenty-one, and filed her bill in the mother's life-

(c) 1 P. W. 448; and see *Churchman v. Harvey*, Amb. 335.

(a) 2 P. W. 484. But see *Cotton v. Cotton*, 3 Y. & C. 149, note.